

HIGH COURT AND SUBORDINATE COURTS

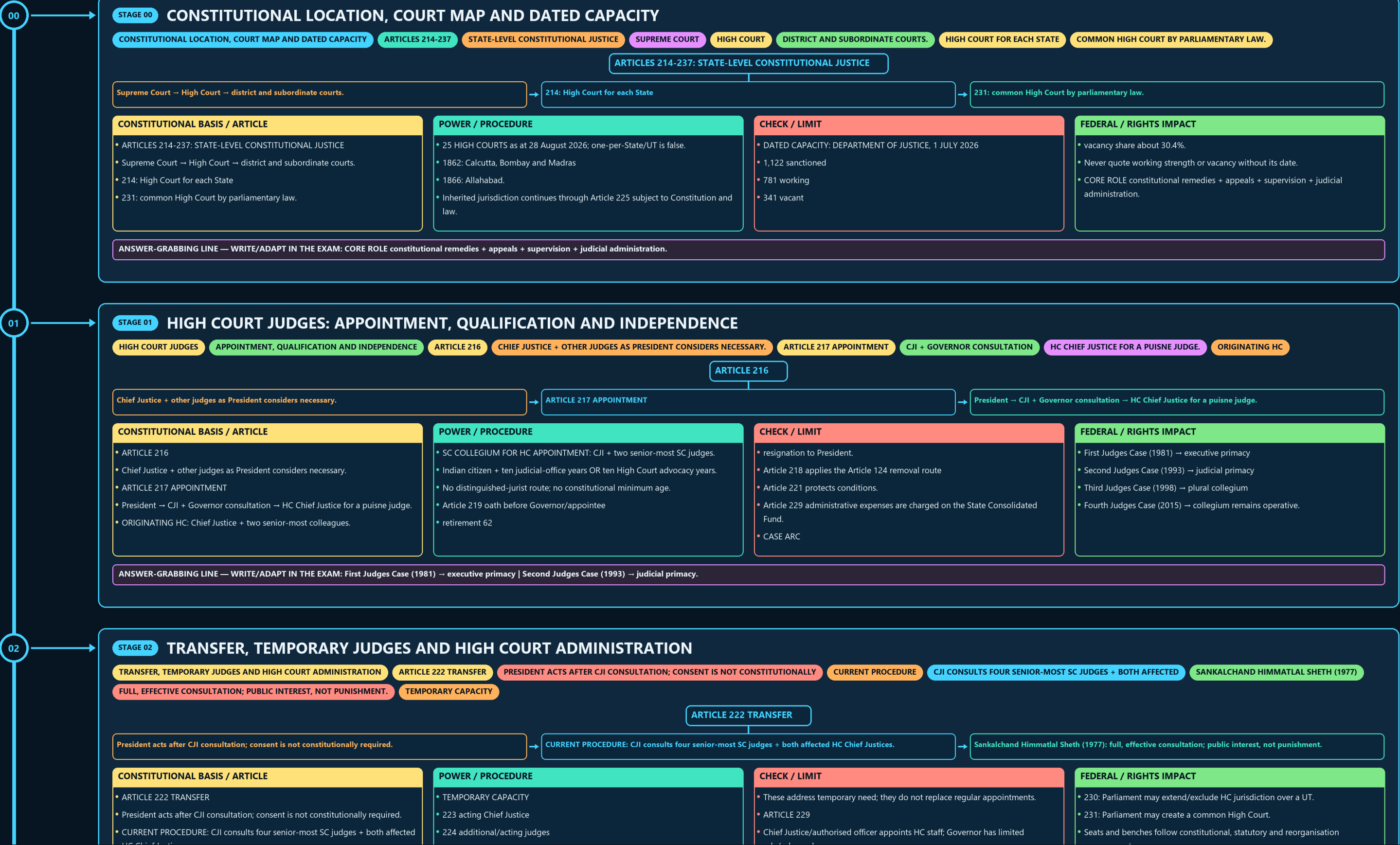
CONSTITUTIONAL LOCATION, COURT MAP → HIGH COURT JUDGES: APPOINTMENT → TRANSFER, TEMPORARY JUDGES AND → JURISDICTION GATEWAY AND ARTICLE → FIVE WRITS AND THE → TRIBUNALS, BASIC STRUCTURE AND

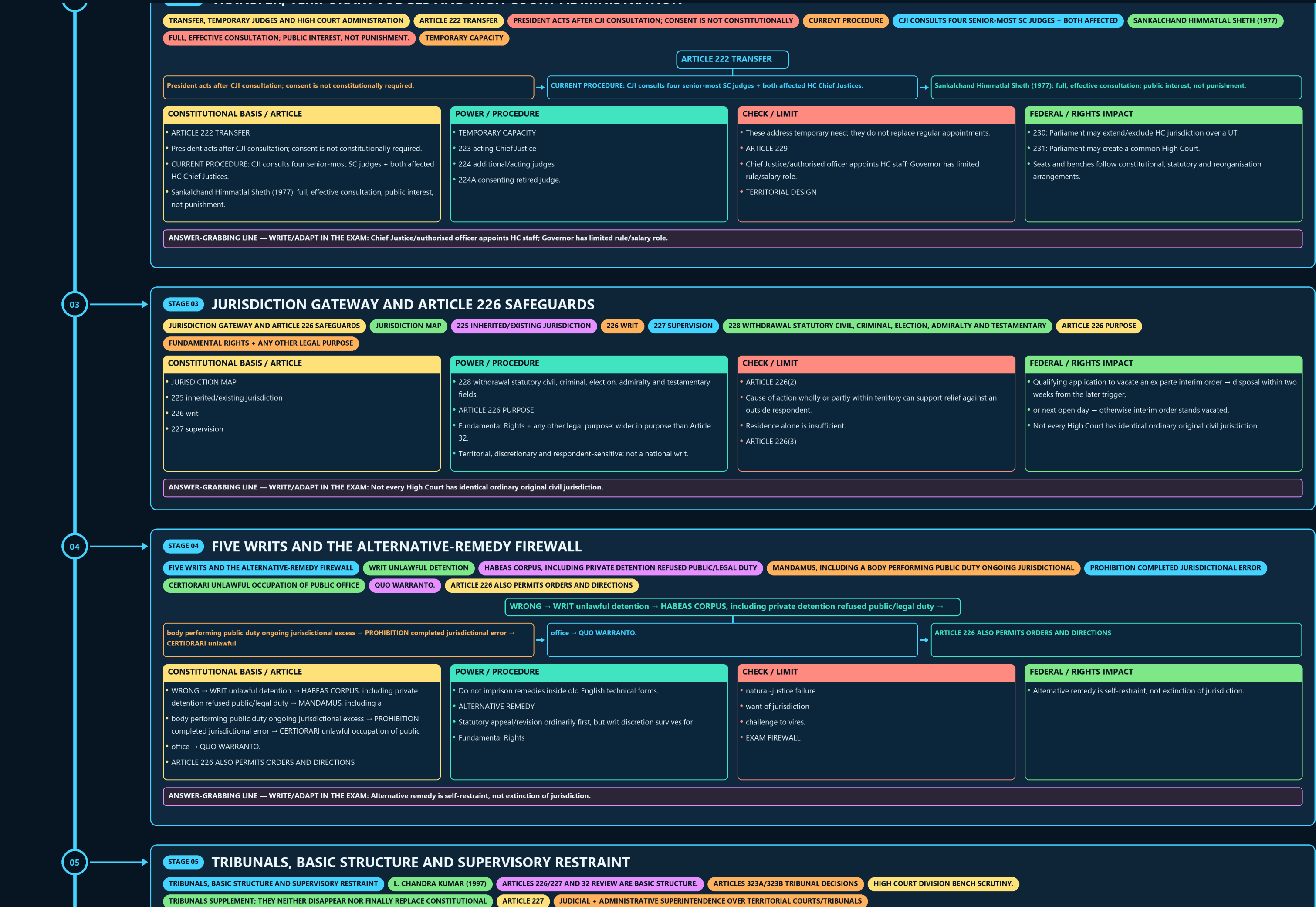
Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW
SUBORDINATE EXTRA
APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g3 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles





• office → QUO WARRANTO.

• ARTICLE 226 ALSO PERMITS ORDERS AND DIRECTIONS

• Fundamental Rights

• EXAM FIREWALL

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Alternative remedy is self-restraint, not extinction of jurisdiction.

05

STAGE 05

TRIBUNALS, BASIC STRUCTURE AND SUPERVISORY RESTRAINT

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L. CHANDRA KUMAR (1997)

ARTICLES 226/227 AND 32 REVIEW ARE BASIC STRUCTURE.

ARTICLES 323A/323B TRIBUNAL DECISIONS

HIGH COURT DIVISION BENCH SCRUTINY.

TRIBUNALS SUPPLEMENT; THEY NEITHER DISAPPEAR NOR FINALLY REPLACE CONSTITUTIONAL

ARTICLE 227

JUDICIAL + ADMINISTRATIVE SUPERINTENDENCE OVER TERRITORIAL COURTS/TRIBUNALS

L. CHANDRA KUMAR (1997)

Articles 226/227 and 32 review are Basic Structure.

Articles 323A/323B tribunal decisions → High Court Division Bench scrutiny.

Tribunals supplement; they neither disappear nor finally replace constitutional courts.

CONSTITUTIONAL BASIS / ARTICLE

- L. CHANDRA KUMAR (1997)
- Articles 226/227 and 32 review are Basic Structure.
- Articles 323A/323B tribunal decisions → High Court Division Bench scrutiny.
- Tribunals supplement; they neither disappear nor finally replace constitutional courts.

POWER / PROCEDURE

- ARTICLE 227
- Judicial + administrative superintendence over territorial courts/tribunals
- Armed-Forces-law forums excluded; petition or suo motu possible.
- RADHEY SHYAM (2015): civil-court judicial orders belong under 227, not 226.

CHECK / LIMIT

- K. VALARMATHI (2025): supervision cannot supplant trial and statutory appeal.
- ARTICLE 228
- Substantial constitutional-interpretation question → HC withdraws
- decides question or case → may return case with binding answer.

FEDERAL / RIGHTS IMPACT

- TRAP: supervision and withdrawal are not routine appeals.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP: supervision and withdrawal are not routine appeals.

06

STAGE 06

ARTICLES 233-237 AND CURRENT RECRUITMENT LAW

ARTICLES 233-237 AND CURRENT RECRUITMENT LAW

ARTICLE 233 DISTRICT JUDGES

GOVERNOR APPOINTS/POSTS/PROMOTES IN CONSULTATION WITH HIGH COURT.

ARTICLE 233(2) TEXT

OUTSIDE-SERVICE CANDIDATE

SEVEN ADVOCACY YEARS + HC RECOMMENDATION.

REJANISH K.V. V. K. DEEPA (2025 INSC 1208)

PROSPECTIVELY OVERRULES DHEERAJ MOR.

ARTICLE 233 DISTRICT JUDGES

Governor appoints/posts/promotes in consultation with High Court.

Article 233(2) text: outside-service candidate → seven advocacy years + HC recommendation.

REJANISH K.V. v. K. DEEPA (2025 INSC 1208)

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 233 DISTRICT JUDGES
- Governor appoints/posts/promotes in consultation with High Court.
- Article 233(2) text: outside-service candidate → seven advocacy years + HC recommendation.
- REJANISH K.V. v. K. DEEPA (2025 INSC 1208)

POWER / PROCEDURE

- Prospectively overrules Dheeraj Mor.
- Qualifying serving judicial officers may compete in direct recruitment using combined advocacy/judicial-service experience
- minimum age 35
- eligibility at application date.

CHECK / LIMIT

- ARTICLE 234 BELOW DISTRICT JUDGE
- Governor's rules + State PSC consultation + High Court consultation.
- ALL INDIA JUDGES ASSOCIATION (20 MAY 2025) future Civil Judge entry → three years Bar practice
- 25% LDCE District-Judge promotion route + suitability control.

FEDERAL / RIGHTS IMPACT

- 236 defines district judge/judicial service
- 237 can apply chapter to notified magistrates.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 236 defines district judge/judicial service | 237 can apply chapter to notified magistrates.

07

STAGE 07

ARTICLE 235 CONTROL AND THE DISTRICT JUSTICE CHAIN

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ARTICLE 235 CONTROL IN HIGH COURT POSTING + PROMOTION

NRIPENDRA NATH BAGCHI (1966)

CONTROL INCLUDES DISCIPLINARY AUTHORITY.

CHANDRA MOHAN (1966)

EXECUTIVE DOMINANCE IN DISTRICT-JUDGE SELECTION IS UNCONSTITUTIONAL.

INDEPENDENCE CHAIN

GOVERNOR/STATE RECRUITMENT ROLE + MANDATORY HC CONSULTATION

ARTICLE 235 CONTROL IN HIGH COURT posting + promotion + leave + disciplinary control, subject

NRIPENDRA NATH BAGCHI (1966): control includes disciplinary authority.

CHANDRA MOHAN (1966): executive dominance in district-judge selection is unconstitutional.

INDEPENDENCE CHAIN

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 235 CONTROL IN HIGH COURT posting + promotion + leave + disciplinary control, subject to law and appeal rights.
- NRIPENDRA NATH BAGCHI (1966): control includes disciplinary authority.
- CHANDRA MOHAN (1966): executive dominance in district-judge selection is unconstitutional.

POWER / PROCEDURE

- Governor/State recruitment role + mandatory HC consultation
- High Court career control
- trial judges insulated from the litigating executive.
- DISTRICT STRUCTURE, SUBJECT TO STATE LAW

CHECK / LIMIT

- District Judge / Sessions Judge
- Civil Judge Senior Division / Chief Judicial Magistrate
- Civil Judge Junior Division / Judicial Magistrate.
- Article 236 defines district judge broadly; names and pecuniary powers vary.

FEDERAL / RIGHTS IMPACT

- CRIMINAL CONTROL
- Sessions death sentence → High Court confirmation before execution.
- Article 227 corrects jurisdiction; Article 235 administers careers: do not conflate them.

HIGH COURT AND SUBORDINATE COURTS • TILE 3/5 • same master rows 5238-8472 of 13710 • continues below

ARTICLE 235 CONTROL AND THE DISTRICT JUSTICE CHAIN

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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 227 corrects jurisdiction; Article 235 administers careers: do not conflate them.

08

STAGE 08

LEGAL AID AND SPECIALISED ACCESS INSTITUTIONS

LEGAL AID AND SPECIALISED ACCESS INSTITUTIONS

ARTICLE 39A + LEGAL SERVICES AUTHORITIES ACT, 1987

HIGH COURT LEGAL SERVICES COMMITTEE

TALUK COMMITTEE.

ELIGIBILITY USES STATUTORY CATEGORIES AND PRESCRIBED INCOME CEILINGS; ONE

ORDINARY LOK ADALAT SETTLEMENT BY CONSENT

CIVIL + COMPOUNDABLE CRIMINAL MATTERS

NO MERITS DECISION AFTER FAILURE.

ORDINARY LOK ADALAT settlement by consent

PERMANENT LOK ADALAT pre-litigation public-utility field

civil + compoundable criminal matters

conciliation first

no merits decision after failure.

limited merits decision after failure.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 39A + LEGAL SERVICES AUTHORITIES ACT, 1987
- NALSA → SLSA / High Court Legal Services Committee → DLSA → Taluk committee.
- Eligibility uses statutory categories and prescribed income ceilings; one old figure is unsafe.

POWER / PROCEDURE

- ORDINARY LOK ADALAT settlement by consent
- civil + compoundable criminal matters
- no merits decision after failure.

CHECK / LIMIT

- PERMANENT LOK ADALAT pre-litigation public-utility field
- conciliation first
- limited merits decision after failure.

FEDERAL / RIGHTS IMPACT

- ARBITRATION agreement-based private adjudication of arbitrable civil/commercial disputes.
- FAMILY COURTS / GRAM NYAYALAYAS statutory specialised access; implementation and jurisdiction are not nationally uniform.
- PYQ 2024: compare source, consent, field, criminal reach and legal effect.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PYQ 2024: compare source, consent, field, criminal reach and legal effect.

09

STAGE 09

ALL INDIA JUDICIAL SERVICE: ROUTE, DESIGN AND LIMITS

ALL INDIA JUDICIAL SERVICE

ROUTE, DESIGN AND LIMITS

ARTICLE 312 ROUTE

RAJYA SABHA

TWO-THIRDS OF MEMBERS PRESENT AND VOTING

PARLIAMENT MAY CREATE SERVICE BY LAW.

ARTICLE 312(3)

AJJS CANNOT INCLUDE POSTS BELOW DISTRICT JUDGE.

ARTICLE 312 ROUTE

Rajya Sabha: two-thirds of members present and voting

Parliament may create service by law.

ARTICLE 312(3): AJJS cannot include posts below district judge.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 312 ROUTE
- Rajya Sabha: two-thirds of members present and voting
- Parliament may create service by law.
- ARTICLE 312(3): AJJS cannot include posts below district judge.
- CURRENT STATUS, 28 AUGUST 2026: no AJJS exists.

POWER / PROCEDURE

- CASE FOR national standards
- wider pool
- predictable recruitment
- mobility and diversity.
- CASE AGAINST language and local law

CHECK / LIMIT

- State reservation/cadre design
- federal role
- career integration.
- NON-NEGOTIABLE DESIGN
- High Court role in selection/probation + Article 235 control + local-language testing

FEDERAL / RIGHTS IMPACT

- State-law training + federal consultation + transparent allocation.
- Do not confuse AJJS with the 2025 Civil Judge Bar-practice rule.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Do not confuse AJJS with the 2025 Civil Judge Bar-practice rule.

10

STAGE 10

CAPACITY, ECOURTS AND DATA-GOVERNANCE REFORM

CAPACITY, ECOURTS AND DATA-GOVERNANCE REFORM

CAPACITY DIAGNOSIS VACANCIES + STAFF/INFRASTRUCTURE + PROCESS/SERVICE DELAY +

COST/UNDERTRIAL HARDSHIP

WEAKER RIGHTS AND COMMERCIAL CERTAINTY.

DATED HIGH COURT SNAPSHOT, 1 JULY 2026

1,122 SANCTIONED

781 WORKING

341 VACANT.

CAPACITY DIAGNOSIS vacancies + staff/infrastructure + process/service delay + government litigation

testing

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Do not confuse AIJS with the 2025 Civil Judge Bar-practice rule.

10

STAGE 10

CAPACITY, ECOURTS AND DATA-GOVERNANCE REFORM

CAPACITY, ECOURTS AND DATA-GOVERNANCE REFORMCAPACITY DIAGNOSIS VACANCIES + STAFF/INFRASTRUCTURE + PROCESS/SERVICE DELAY +COST/UNDERTRIAL HARDSHIPWEAKER RIGHTS AND COMMERCIAL CERTAINTY.DATED HIGH COURT SNAPSHOT, 1 JULY 20261,122 SANCTIONED781 WORKING341 VACANT.

CAPACITY DIAGNOSIS vacancies + staff/infrastructure + process/service delay + government litigation

backlog → cost/undertrial hardship → weaker rights and commercial certainty.

DATED HIGH COURT SNAPSHOT, 1 JULY 2026

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CONSTITUTIONAL BASIS / ARTICLE

CAPACITY DIAGNOSIS vacancies + staff/infrastructure + process/service delay + government litigation

backlog → cost/undertrial hardship → weaker rights and commercial certainty.

DATED HIGH COURT SNAPSHOT, 1 JULY 2026

1,122 sanctioned

POWER / PROCEDURE

781 working

341 vacant.

ECOURTS PHASE III, 2023-2027, RS 7,210 CRORE record digitisation + e-filing/e-payments + e-Sewa Kendras + interoperable management.

NJDG age/stage/workload visibility → diagnosis and allocation

CHECK / LIMIT

not crude judge ranking or disposal quotas.

EXECUTABLE REFORM appointment calendars

registry/staff capacity

accountable government appeals reliable service

FEDERAL / RIGHTS IMPACT

age-based dockets

legal aid

cyber/privacy/local-language safeguards.

Digital-by-default must never become digital-only.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: EXECUTABLE REFORM appointment calendars | registry/staff capacity | accountable government appeals reliable service | age-based dockets | legal aid | cyber/privacy/local-language safeguards.

11

STAGE 11

COMPARISON, PYQ CONTROLS AND MARKS-SCALED ANSWER SPINE

COMPARISON, PYQ CONTROLS AND MARKS-SCALED ANSWER SPINESUPREME COURTHIGH COURTSUBORDINATE COURTSARTICLE 32 FR REMEDYARTICLE 226 FR + LEGAL RIGHTSTATUTORY TRIAL JURISDICTION NATIONAL APEXTERRITORIAL CONSTITUTIONAL COURT

SUPREME COURT

HIGH COURT

SUBORDINATE COURTS

Article 32 FR remedy

Article 226 FR + legal rights

CONSTITUTIONAL BASIS / ARTICLE

SUPREME COURT

HIGH COURT

SUBORDINATE COURTS

Article 32 FR remedy

Article 226 FR + legal rights

POWER / PROCEDURE

statutory trial jurisdiction national apex

territorial constitutional court

local facts and first adjudication no Article 235 role

Articles 227/229/235 administration

controlled by High Court.

CHECK / LIMIT

PYQ ROUTES

2024 GS-II Q2, 10 marks/150 words: Lok Adalat versus Arbitration Tribunal.

2025 GS-II Q13, 15 marks/250 words: collegium compared with United States.

2019/2021 Prelims routes: HC review and retired-judge distinctions.

10 MARKS thesis → 3 article distinctions → one case → limit → verdict.

FEDERAL / RIGHTS IMPACT

15 MARKS architecture → mechanism → case/current evidence → criticism → targeted reform.

20 MARKS multi-dimensional matrix → causal chain → counterargument → executable safeguards.

FINAL LINE

Independent State justice needs broad remedies, restrained supervision,

High Court-controlled careers, dated capacity evidence and inclusive digital administration.

MECHANISM / VERDICT — 15 MARKS architecture → mechanism → case/current evidence → criticism → targeted reform.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 10 MARKS thesis → 3 article distinctions → one case → limit → verdict.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT37. ARTICLE 226 VERSUS ARTICLE 227 IN ANSWER WRITING38. HIGH COURT VERSUS SUPREME COURT39. APPOINTMENT REFORM MATRIX40. ANSWER-WRITING EVIDENCE DISCIPLINEHIGH COURT CONTROL PROTECTS DISTRICT JUDICIAL INDEPENDENCE.NAMED EVIDENCEARTICLES 233-235.

OPTIONAL DOCTRINE / CASE

37. Article 226 versus Article 227 in answer writing

38. High Court versus Supreme Court

39. Appointment reform matrix

40. Answer-writing evidence discipline

ADVANCED LIMIT

Claim: High Court control protects district judicial independence.

Named evidence: Articles 233-235.

Mechanism: consultation for appointments and High Court control over posting/promotion/leave.

Analysis: removes direct State-executive leverage.

COMPARATIVE NUANCE

Qualification: recruitment and infrastructure remain shared responsibilities.

Verdict: independence requires High Court control plus coordinated capacity.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.